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MAY 09 2017

State Board of
Behavioral Health Licensure

**Complaint No. 16-LPC-94
17-LPC-04**

Respondent.

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License Number 5178, and was licensed on or about April 24, 2015.

2. On September 16, 2016, the Board received a Request for Inquiry regarding Respondent, alleging sexual comments made by Respondent and requests for controlled drugs by Respondent via text message.

3. Client A.B. began receiving outpatient individual counseling services from Respondent in February of 2016 at the Rogers County Drug Abuse Program.

4. Respondent made sexual comments to A.B.

a. Respondent told A.B. that they were going to have sex therapy, and he explained that meant that he and A.B. were going to have sex together.

b. Respondent told A.B. to show him her breasts and then told A.B. that asking her to do that was a form of therapy.

c. Respondent asked A.B. to see a photo of A.B.'s boyfriend and then commented that it was ok if there were nude pictures in her cell phone because he and his girlfriend sent nude photos to each other all the time.

5. Respondent made sexual comments about A.B. to another employee of the Rogers County Drug Abuse Program, commenting that A.B. had a nice body and he wished all the clients looked like her.

6. On May 11, 2016, Respondent sent A.B. a text message asking for two Suboxone to give to another one of his clients.

7. Suboxone, chemical name Buprenorphine, is a Schedule III controlled dangerous substance according to 63 O.S. § 2-208.

8. On January 23, 2017, a second RFI was sent to the Board regarding Respondent, alleging a

breach of confidentiality.

9. Respondent disclosed the nature and content of his session with A.B. to another client.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over Respondent pursuant to 59 O.S. §§1905 and 1912 of the Licensed Professional Counselors Act.

2. Pursuant to 59 O.S. § 1912(A)(5), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by rules established by the Board. The rules of professional conduct are provided for in Subchapter 3 of Chapter 10 of Title 86 of the Oklahoma Administrative Code.

3. Pursuant to OAC 86:10-3-6, a licensee who does not comply with the rules of professional conduct as provided for in Subchapter 3 shall be subject to disciplinary action.

4. Pursuant to OAC 86:10-3-1, a rule of professional conduct, “[i]t shall be the responsibility of Licensed Professional Counselors (“LPCs”), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. . . LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.” *Id.*

5. Respondent has violated OAC 86:10-3-1 by making comments of a sexual nature to his client and regarding his client to another person.

6. Pursuant to OAC 86:10-3-3(c), a rule of professional conduct, “LPCs shall not knowingly

enter into a dual relationship(s) and shall take any necessary precautions to prevent a dual relationship from occurring.” *Id.*

7. Pursuant to OAC 86:10-1-2, the term “[d]ual relationship means a familial, social, financial, business, professional, close personal, sexual or other non-therapeutic relationship with a client, or engaging in any activity with another person that interferes or conflicts with the LPC’s or LPC Candidate’s professional obligation to a client.” *Id.*

8. Respondent’s comments of a sexual nature to his client and regarding his client to another person constitute a dual relationship. Respondent has violated OAC 86:10-3-3(c) by entering into a dual relationship with his client and by failing to take necessary precautions to prevent the dual relationship from occurring.

9. Pursuant to 59 O.S. § 1912(A)(6), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in negligence or wrongful actions in the performance of his or her duties.

10. Respondent has violated 59 O.S. § 1912(A)(6) by engaging in a wrongful action in the performance of his duties. Respondent requested that his client A.B. give him Suboxone, a Schedule III Controlled Dangerous Substance (CDS), so that he could give it to another client. The attempt to possess a CDS in such a manner is prohibited by 63 O.S. § 2-408.

11. Pursuant to OAC 86:10-3-3(b)(2), a rule of professional conduct, “LPCs shall maintain the confidentiality of any information received from any person or source about a client, unless authorized in writing by the client or otherwise authorized or required by law or court order.” *Id.*

12. Respondent has violated OAC 86:10-3-3(b)(2) by disclosing the nature and content of his session with A.B. to another client.

13. Pursuant to Title 59 O.S. § 1913.1(B)(1) and OAC 86:10-29-14, the Board has authority to assess an administrative fine not to exceed \$10,000.00 against any person found to have violated any provision of the Licensed Professional Counselors Act (59 O.S. § 1901 – 1920) or any rule promulgated by the Board.

14. Any Findings of Fact which is a Conclusion of Law is hereby incorporated by reference and *vice versa*.

FINAL ORDER

1. Respondent has violated the Act and the Board's rules as described in the Findings of Fact and Conclusions of Law above.

2. Respondent is hereby assessed a fine in the amount of Three Thousand Dollars (\$3,00.00).

3. Respondent's License No. 5178 is hereby **REVOKED**.

All members present vote "Aye".

ANTI-TRUST REVIEW

Pursuant to Executive Order 2015-33, this Order was reviewed and approved by the Oklahoma Attorney General. A copy of the Attorney General Opinion is enclosed.

Order issued and effective on this the 10 day of May, 2017.


DR. KELLY COLLINS, CHAIR